

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 1319 By: Frix of the Senate
3 and
4 Sneed of the House
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8 [Corporation Commission - Revolving Fund -
9 expenditure - assistance - rules - codification -
emergency]
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12 AUTHORS: Add the following House Coauthors: Boles and Bashore
13 AMENDMENT NO. 1. Strike the stricken title, enacting clause, and
14 entire bill and insert:
15 "An Act relating to Corporation Commission; requiring
16 certain process be established for cities and
17 counties to seek certain reimbursement; requiring
18 city or county to begin certain process before
19 requesting reimbursement; providing fair market value
20 be determined by city or county; providing process
21 for determining valuation; requiring application to
22 request use of certain funds; prohibiting certain
23 fee; authorizing Corporation Commission to hear
24 application; requiring Commission make certain ruling
on eligibility; prohibiting homeowner payments from
certain fund; requiring Commission comply with
certain requirements; requiring certain remediation
and abatement using state plugging funds; requiring
city or county sell property and return proceeds to
certain fund; requiring homeowner act in good faith;
requiring homeowner provide certain copies of claims;
requiring certain proceeds be reimbursed to certain
fund; requiring homeowner be held liable if acting in

1 bad faith; requiring Attorney General bring action in
2 certain cases; providing for referral to the
3 Department of Environmental Quality; requiring
4 certain reimbursement to Department of Environmental
5 Quality; requiring the promulgation of certain rules
6 by Commission; creating the Remediation Assistance
7 Revolving Fund; establishing revolving fund
8 characteristics; declaring the funds appropriated;
9 providing for codification; and declaring an
10 emergency.

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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

A. 1. To alleviate new and ongoing serious environmental
emergencies, a process shall be established to allow cities or
counties to seek reimbursement after acquiring title at fair market
value and removing a residential home that has become contaminated
by a substance including or related to brine or oil. The city or
county shall begin the process to acquire the residential home prior
to requesting reimbursement.

2. Fair market value shall be determined by the city or county
and shall reflect the property's condition prior to the
environmental emergency. Such value shall be established as the
greater of either the most recent valuation of the property by the
county assessor or a comparative market analysis based on sales of

1 similar properties occurring within the preceding three to six
2 months.

3 B. 1. To request the use of funds from the Remediation
4 Assistance Revolving Fund created in Section 2 of this act, the city
5 or county shall file an application to be considered by the
6 Corporation Commission. No fee shall be required to file the
7 application. The Corporation Commission may hear the application
8 with or without notice.

9 2. After considering the evidence presented, the Corporation
10 Commission shall rule on the application and determine whether the
11 city or county is eligible for reimbursement.

12 3. The Remediation Assistance Revolving Fund shall not be used
13 to pay the homeowner for any damages.

14 4. Prior to any reimbursement from the Remediation Assistance
15 Revolving Fund, the Corporation Commission shall comply with the
16 requirements set forth in the Oklahoma Central Purchasing Act,
17 relating to emergency acquisitions, Section 85.41A of Title 74 of
18 the Oklahoma Statutes.

19 5. Once the residence is removed, if the presence of a well is
20 confirmed, the Corporation Commission shall remediate and abate the
21 environmental emergency using state plugging funds. After the
22 property is remediated, the city or county shall sell the property
23 at fair market value, and return all proceeds, after expenses, to
24 the Remediation Assistance Revolving Fund.

1 6. The homeowner shall in good faith pursue all available
2 homeowner's insurance claims and damage claims and ensure that the
3 Remediation Assistance Revolving Fund is listed as either the
4 primary creditor or beneficiary, or both, for all payment of claims.
5 The homeowner shall provide copies of these claims to the
6 Corporation Commission upon request. All proceeds received by the
7 homeowner not related to damaged personal property shall be
8 reimbursed to the Remediation Assistance Revolving Fund.

9 C. The homeowner shall be held personally liable if the
10 Remediation Assistance Revolving Fund is not reimbursed consistent
11 with this act or if all available homeowner's insurance claims and
12 damage claims are not pursued in good faith. The Attorney General
13 shall bring an action in the district court in and for Oklahoma
14 County, State of Oklahoma, to enforce compliance by the homeowner or
15 to seek reimbursement to the Remediation Assistance Revolving Fund.

16 D. If, at any time, the environmental emergency is determined
17 to not include or be related to brine or oil, or it is determined to
18 be a naturally occurring breakout, the matter shall be referred to
19 the Department of Environmental Quality. If costs of remediation
20 and abatement are expended by the Department of Environmental
21 Quality, such costs shall be reimbursed by the Remediation
22 Assistance Revolving Fund if no other eligible funding sources are
23 available.

1 E. The Corporation Commission shall promulgate rules to
2 effectuate the provisions of this section.

3 SECTION 2. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
5 is created a duplication in numbering, reads as follows:

6 There is hereby created in the State Treasury a revolving fund
7 for the Corporation Commission to be designated the "Remediation
8 Assistance Revolving Fund". The fund shall be a continuing fund,
9 not subject to fiscal year limitations, and shall consist of all
10 monies received by the Corporation Commission from any public or
11 private donations, contributions, and gifts received for the benefit
12 of the fund and any amounts appropriated by the Legislature
13 designated for deposit in the fund. All monies accruing to the
14 credit of the fund are hereby appropriated and may be budgeted and
15 expended by the Corporation Commission or the Department of
16 Environmental Quality for the purpose of providing remediation
17 assistance as provided for in Section 1 of this act. Expenditures
18 from the fund shall be made upon warrants issued by the State
19 Treasurer against claims filed as prescribed by law with the
20 Director of the Office of Management and Enterprise Services for
21 approval and payment.

22 SECTION 3. It being immediately necessary for the preservation
23 of the public peace, health or safety, an emergency is hereby
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1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval."

3 Passed the House of Representatives the 5th day of May, 2026.

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6 Presiding Officer of the House of
7 Representatives

8 Passed the Senate the ____ day of _____, 2026.

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11 Presiding Officer of the Senate

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1 ENGROSSED SENATE
2 BILL NO. 1319

By: Frix of the Senate

3 and

4 Sneed of the House

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6 [Corporation Commission - Revolving Fund -
7 expenditure - assistance - rules - codification -
8 emergency]
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10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
13 is created a duplication in numbering, reads as follows:

14 A. The Corporation Commission shall establish a process to
15 alleviate new and ongoing serious environmental emergencies through
16 which a homeowner whose residence has become contaminated by a
17 substance within the Corporation Commission's jurisdiction,
18 including, but not limited to, brine or oil, may apply for
19 remediation assistance.

20 B. 1. To request the use of funds from the Remediation
21 Assistance Revolving Fund created in Section 2 of this act, the
22 homeowner shall file an application to be considered by the
23 Corporation Commission. The Corporation Commission may hear the
24 application with or without notice.

1 2. After considering the evidence presented, the Corporation
2 Commission shall rule on the application and determine the amount of
3 remediation assistance necessary to remediate and abate the
4 environmental emergency.

5 3. The amount of remediation assistance may include the cost to
6 stop the substance from continuing the contamination, the cost of
7 removing and cleaning up the substance, and the cost of purchasing
8 the residence and property at fair market value. The Remediation
9 Assistance Revolving Fund shall not be used to pay for any damages.

10 4. Prior to any expenditure from the Remediation Assistance
11 Revolving Fund, the Corporation Commission shall comply with the
12 requirements set forth in Section 85.41A of Title 74 of the Oklahoma
13 Statutes.

14 5. If the Corporation Commission determines that purchasing the
15 homeowner's property is the best course of action, title to the
16 property shall be acquired and held by the Commissioners of the Land
17 Office. The Commissioners of the Land Office shall determine the
18 fair market value of the property. If removal of the residence is
19 necessary, the Commissioners of the Land Office shall facilitate
20 removal of the residence. Once the residence is removed and the
21 presence of a well is confirmed, the Corporation Commission shall
22 remediate and abate the environmental emergency. After the property
23 is remediated, the Commissioners of the Land Office shall sell the
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1 property and return all proceeds to the Remediation Assistance
2 Revolving Fund.

3 6. A homeowner's insurance claim shall not be required prior to
4 receiving remediation assistance provided pursuant to this
5 subsection. However, the homeowner shall in good faith pursue all
6 available homeowner's insurance claims and damage claims. All
7 proceeds received by the homeowner not related to damaged personal
8 property shall be reimbursed to the Remediation Assistance Revolving
9 Fund.

10 C. If, at any time, the environmental emergency is determined
11 by the Corporation Commission to not be within the Corporation
12 Commission's jurisdiction, or it is determined to be a naturally
13 occurring breakout, the matter shall be referred to the Department
14 of Environmental Quality and the Oklahoma Energy Resources Board to
15 remediate and abate the environmental emergency.

16 D. The Corporation Commission shall promulgate rules to
17 effectuate the provisions of this section.

18 SECTION 5. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 180.15 of Title 17, unless there
20 is created a duplication in numbering, reads as follows:

21 There is hereby created in the State Treasury a revolving fund
22 for the Corporation Commission to be designated the "Remediation
23 Assistance Revolving Fund". The fund shall be a continuing fund,
24 not subject to fiscal year limitations, and shall consist of all

1 monies received by the Corporation Commission from any public or
2 private donations, contributions, and gifts received for the benefit
3 of the fund and any amounts appropriated by the Legislature
4 designated for deposit in the fund. All monies accruing to the
5 credit of the fund are hereby appropriated and may be budgeted and
6 expended by the Corporation Commission for the purpose of providing
7 remediation assistance as provided for in Section 1 of this act.
8 Expenditures from the fund shall be made upon warrants issued by the
9 State Treasurer against claims filed as prescribed by law with the
10 Director of the Office of Management and Enterprise Services for
11 approval and payment.

12 SECTION 6. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval.

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1 Passed the Senate the 25th day of March, 2026.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2026.

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9 Presiding Officer of the House
10 of Representatives